

Form No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Crl. Misc. No.46188-B of 2021

Waris **Versus** The State, etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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12.08.2021 Ch. Mahmood Alam, Advocate for the petitioner.
Mr. Nisar Ahmad Virk & Hafiz Asghar Ali, Deputy
Prosecutors General for the State with Akram SI with
record.

Through this petition filed under Section 497 Cr.P.C.,
petitioner Waris seeks his post-arrest bail in case FIR
No.547/2020, dated 18.08.2020, registered under Sections 392,
395, 412, 411 PPC with Police Station Bhikhi, District
Sheikhupura.

2. The brief facts, as narrated in the crime report, are that on
29.07.2020, at 08.30 p.m. four unknown accused persons
committed robbery of cash amount of Rs.95,000/-, mobile
phone, motorcycle and other documents from the complainant.
Later on, the petitioner along with another was arrayed as an
accused by the complainant through his supplementary
statement recorded on 18.08.2020.

3. Arguments heard and record perused.

4. Alleged occurrence took place on 29.07.2020 and crime
report was lodged on 18.08.2020 after an inordinate delay
against four unknown accused persons, for which no plausible
explanation had been rendered by the complainant.
Astonishingly, petitioner was nominated in this case through
supplementary statement on the same day i.e. 18.08.2020,
without disclosing the source of information. In a case where
accused is not nominated in FIR rather nominated through
supplementary statement without disclosure of source of

information, it becomes matter of further inquiry. It was held by the Honorable Supreme Court in Naeem Akhtar's case¹ as infra:

“4. It is an admitted fact that name of the petitioner is not mentioned in the F.I.R. but his name was included in the list of accused in supplementary statement. There is no explanation available in this regard, therefore, the case of the petitioner falls under the category of further inquiry...”

This view was further fortified by Abid Ali @ Ali's case², wherein it was held that:

“The learned State Counsel read the supplementary statement of the complainant recorded in the case but this statement did not disclose as to how the complainant came to know the name of the appellant when in fact she was neither known to the appellant nor she disclosed his name in the F.I.R. lodged in the case. We are, therefore, of the view that at this stage, it cannot be said that the accused is reasonably believed to have committed the offence which fell within the prohibitory clause of section 497, Cr.P.C.”

5. Identification parade of present petitioner was conducted on 14-09-2020 after his nomination through supplementary statement on 18.08.2020. Nomination of accused prior to identification parade, diminishes sanctity of such Test Identification Parade and its evidentiary value shall be determined by the trial court. Reliance can be placed on *Saadi Ahmad's Case*.³ As far as recovery of Rs.30,000/- allegedly affected on the pointing out of petitioner is concerned, evidentiary value of the same shall be seen by the learned trial court after recording of evidence. To sum up the discussion, involvement of the present petitioner through supplementary statement and that too without mentioning source of information before the identification parade, brings the case of the petitioner within the purview of further inquiry as envisaged by Section 497(2), Cr.P.C. Mere registration of few other criminal cases against the petitioner, without conviction, does

¹ 1996 SCMR 511

² 2011 SCMR 161

³ 2011 YLR 689

not disentitle him from the concession of bail, if his case, otherwise, falls within ambit of further inquiry. The investigation of this case is complete and his person is no more required to the police for further investigation.

6. In the light of above, the instant bail petition is **allowed** and the petitioner is **admitted** to post-arrest bail, subject to his furnishing bail bonds in the sum of Rs.1,00,000/- (Rupees one hundred thousand only) with one surety in the like amount to the satisfaction of learned trial Court.

(ALI ZIA BAJWA)
JUDGE

Approved for Reporting.

Athar